

Smt. Hardei v. Prem Pal Singh

High Court of Judicature at Allahabad · Single Judge · 17 January 2023 · Contempt Application (Civil) No. 255 of 2023 · **Disposed with two months more to comply with the Para 6.8 direction**

HEADNOTE

Contempt for alleged non-compliance of a writ that left a Para 6.8 objection to be filed and decided after hearing was disposed of at this stage. A prima facie case was recorded, the Executive Engineer was given two further months to comply, and the consumer was left free to apply again; the assessment was not decided.

FACTUAL SUMMARY

Smt. Hardei moved a civil contempt application against Prem Pal Singh, Executive Engineer, Electricity Distribution Division II, alleging willful disobedience of this Court's order dated 17 May 2022 in Writ C No. 6224 of 2022. That writ, without touching the merits, had permitted her to file an objection under Para 6.8 of the U.P. Electricity Supply Code, 2005 before respondent No. 4 within four weeks, and had required a decision after hearing within four weeks thereafter. She stated that, despite service on 7 June 2022, no order had been passed.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.8

Contempt compliance with a direction to decide a Para 6.8 objection

HOLDING

Where contempt is alleged because no order followed service of a writ which, without any opinion on merits, permitted an objection under Para 6.8 of the U.P. Electricity Supply Code, 2005 and required its decision in accordance with law after hearing, the Court may record a prima facie case, allow the Executive Engineer two months from production of the contempt order to comply, and dispose of the application at that stage with liberty to move afresh if the direction remains unfulfilled. The assessment itself is not examined. ¶ 1

PRINCIPLE TAGS

para-6.8-objection-alternate-remedy The Supply Code content is the writ direction, recited and enforced here, sending the consumer to an objection under Para 6.8 to be decided by the authority after hearing. This order does not adjudicate the demand; it only extends time to carry out that route. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — MERITS OF THE PARA 6.8 OBJECTION AND OF THE UNDERLYING ASSESSMENT

The writ quoted in the order withheld any opinion on merits and left the decision to respondent No. 4. This Court did not examine the demand. ¶ 1

NOT DECIDED — WHETHER THE OPPOSITE PARTY IS GUILTY OF WILFUL DISOBEDIENCE AND LIABLE TO PUNISHMENT

A prima facie case was recorded, but the contempt was disposed of at this stage, with liberty to apply again if the writ direction is not complied with within two months. ¶ 1